

**CV-24-004072 ZOLLIN, TIMOTHY vs BORRAYES, ALBIN HELVIE DE LEON
– Defendants Albin Helvie De Leon Borrayes and Pacific Agri-Products
Inc.’s Motion for Summary Judgment or in the Alternative for Summary
Adjudication – DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, the motion for summary judgment, or alternatively, summary adjudication, is DENIED in its entirety. GOVERNING LAW A defendant moving for summary judgment bears the initial burden of demonstrating that a cause of action has no merit by showing that one or more elements cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) If the defendant meets that burden, the burden shifts to the plaintiff to show the existence of a triable issue of material fact. Summary judgment is a drastic remedy; consequently, the moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and all doubts are resolved in favor of the opposing party. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851; *Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038; *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) The pleadings frame the issues on summary judgment, and the moving party's burden is measured against the allegations of the operative pleading. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) A motion for summary adjudication is subject to separate procedural requirements. The notice of motion and separate statement must identify each issue to be adjudicated, and the separate statement must set forth all material facts claimed to be undisputed with respect to each issue. (See Code Civ. Proc., § 437c, subd. (f); Cal. Rules of Court, rule 3.1350.) Summary adjudication may only be granted if it completely disposes of a cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) REQUEST FOR JUDICIAL NOTICE Defendants request judicial notice that the applicable speed limit at the intersection of Patterson Road and Snedigar Road was 55 miles per hour. Defendants contend the issue is subject to judicial notice because Patterson Road was an undivided highway and therefore subject to the default speed limit established by Vehicle Code section 22349, subdivision (b). The request relies on declarations, photographs, municipal records, aerial imagery, and other evidence to establish the requested factual predicate. Because the Court resolves the motion on procedural grounds and without reaching the merits of defendants' speed-limit argument, the Court declines to reach the request. The Request for Judicial Notice is consequently DENIED as MOOT. OBJECTIONS Plaintiffs filed extensive objections to Defendants' evidence, including objections directed to the declarations of Borrayes, Kegley, Merala, and Kenney. Defendants similarly filed objections to portions of Plaintiffs' expert declaration from Herbert. Because the Court's ruling does not depend upon resolution of those evidentiary disputes, the Court DECLINES to rule on the objections pursuant to Code of Civil Procedure section 437c, subdivision (q). DISCUSSION I. Summary Judgment Defendants contend all causes of action against them fail because Borrayes was not negligent and because there is no evidence the truck was negligently maintained. The Court finds summary judgment inappropriate. Plaintiffs identify numerous disputed issues concerning Borrayes's conduct before the collision, including evidence that he observed Melton's vehicle before impact (AMF No. 4), continued "driving normally" after observing the vehicle (AMF No. 9), did not brake before impact (AMF No. 14), did not attempt to steer away (AMF No. 15), and made no evasive maneuver before the collision (AMF No. 84). Plaintiffs additionally present expert opinion concerning alleged failures to observe, recognize, and respond to a developing traffic hazard. (See AMF Nos. 26-84.) Defendants vigorously challenge the sufficiency of the evidence and argue Plaintiffs' expert's opinions are unsupported, speculative, and inconsistent with the underlying facts. However, based on the record presented, the Court cannot conclude as a matter of law that no triable issue exists regarding negligence, causation, or comparative fault. Accordingly, summary judgment is DENIED. II. Summary Adjudication – Issue No. 1 Issue No. 1 seeks adjudication of Plaintiffs' causes of action for General Negligence, Negligence Based on Vehicle Code Sections 22350 and 22450, Negligent Entrustment, and Motor Vehicle Negligence. Although the issue is properly identified in both the notice of motion and the separate statement, Defendants attempt to adjudicate four separate causes of action through a single issue. The separate statement contains only seventeen operative material facts. Those facts concern the circumstances of the collision, including speed, right-of-way, the stop-sign violation, the path of the truck, distance, and timing. (See SUF Nos. 1-17.) The separate statement does not identify separately stated material facts directed to the elements of negligent entrustment, including Pacific Agri's knowledge, entrustment, training, supervision, competency assessments, or other facts uniquely relevant to that cause of action. (See *id.*) Because the separate statement fails to adequately identify all material facts necessary to adjudicate all causes of action encompassed within Issue No. 1, summary adjudication of Issue No. 1 is DENIED. (See *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on inapposite grounds as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952; *Teselle v. McLoughlin* (2009) 173

Cal.App.4th 156, 160.) III. Summary Adjudication – Issue No. 2 Issue No. 2 seeks summary adjudication of plaintiffs' punitive damages allegations. The separate statement contains no separately stated punitive-damages facts. Instead, Defendants merely incorporate by reference the facts supporting Issue No. 1. The separate statement contains no separately stated facts concerning malice, oppression, fraud, despicable conduct, conscious disregard, ratification, managerial authorization, or any other issue specifically pertinent to punitive damages. Because the separate statement fails to identify separately stated material facts supporting adjudication of the punitive damages issue, summary adjudication of Issue No. 2 is also DENIED. (See *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on inapposite grounds as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 160.) IV. Reply Arguments Do Not Cure the Defects On reply, Defendants argue that Plaintiffs' negligent entrustment claim fails because Pacific Agri admits that Borrayes acted within the course and scope of his employment and therefore the negligent entrustment claim is barred under *Diaz v. Carcamo* (2011) 51 Cal.4th 1148. Whether or not that argument is ultimately persuasive, the separate statement does not identify as a separately stated undisputed material fact that Pacific Agri admits course-and-scope employment or vicarious liability. Rather, Defendants attempt to rely on declaration sections cited for the first time on reply. Further, Defendants did not separately identify negligent entrustment as its own issue for summary adjudication. Defendants instead included it within Issue No. 1. The Court therefore concludes that the reply arguments do not cure the deficiencies in the motion or separate statement.

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GOVERNING LAW

A defendant moving for summary judgment bears the initial burden of demonstrating that a cause of action has no merit by showing that one or more elements cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) If the defendant meets that burden, the burden shifts to the plaintiff to show the existence of a triable issue of material fact. Summary judgment is a drastic remedy; consequently, the moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and all doubts are resolved in favor of the opposing party. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851; *Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038; *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

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A motion for summary adjudication is subject to separate procedural requirements. The notice of motion and separate statement must identify each issue to be adjudicated, and the separate statement must set forth all material facts claimed to be undisputed with respect to each issue. (See Code Civ. Proc., § 437c, subd. (f); Cal. Rules of Court, rule 3.1350.) Summary adjudication may only be granted if it completely disposes of a cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice that the applicable speed limit at the intersection of Patterson Road and Snedigar Road was 55 miles per hour. Defendants contend the issue is subject to judicial notice because Patterson Road was an undivided highway and therefore subject to the default speed limit established by Vehicle Code section 22349, subdivision (b).

The request relies on declarations, photographs, municipal records, aerial imagery, and other evidence to establish the requested factual predicate.

Because the Court resolves the motion on procedural grounds and without reaching the merits of defendants' speed-limit argument, the Court declines to reach the request.

The Request for Judicial Notice is consequently DENIED as MOOT.

OBJECTIONS

Plaintiffs filed extensive objections to Defendants' evidence, including objections directed to the declarations of Borrayes, Kegley, Merala, and Kenney. Defendants similarly filed objections to portions of Plaintiffs' expert declaration from Herbert.

Because the Court's ruling does not depend upon resolution of those evidentiary disputes, the Court DECLINES to rule on the objections pursuant to Code of Civil Procedure section 437c, subdivision (q).

DISCUSSION

I. Summary Judgment

Defendants contend all causes of action against them fail because Borrayes was not negligent and because there is no evidence the truck was negligently maintained.

The Court finds summary judgment inappropriate. Plaintiffs identify numerous disputed issues concerning Borrayes's conduct before the collision, including evidence that he observed Melton's vehicle before impact (AMF No. 4), continued "driving normally" after observing the vehicle (AMF No. 9), did not brake before impact (AMF No. 14), did not attempt to steer away (AMF No. 15), and made no evasive maneuver before the collision (AMF No. 84). Plaintiffs additionally present expert opinion concerning alleged failures to observe, recognize, and respond to a developing traffic hazard. (See AMF Nos. 26-84.)

Defendants vigorously challenge the sufficiency of the evidence and argue Plaintiffs' expert's opinions are unsupported, speculative, and inconsistent with the underlying facts. However, based on the record presented, the Court cannot conclude as a matter of law that no triable issue exists regarding negligence, causation, or comparative fault.

Accordingly, summary judgment is DENIED.

II. Summary Adjudication – Issue No. 1

Issue No. 1 seeks adjudication of Plaintiffs' causes of action for General Negligence, Negligence Based on Vehicle Code Sections 22350 and 22450, Negligent Entrustment, and Motor Vehicle Negligence.

Although the issue is properly identified in both the notice of motion and the separate statement, Defendants attempt to adjudicate four separate causes of action through a single issue. The separate statement contains only seventeen operative material facts. Those facts concern the circumstances of the collision, including speed, right-of-way, the stop-sign violation, the path of the truck, distance, and timing. (See SUF Nos. 1-17.)

The separate statement does not identify separately stated material facts directed to the elements of negligent entrustment, including Pacific Agri's knowledge, entrustment, training, supervision, competency assessments, or other facts uniquely relevant to that cause of action. (See *id.*)

Because the separate statement fails to adequately identify all material facts necessary to adjudicate all causes of action encompassed within Issue No. 1, summary adjudication of Issue No. 1 is DENIED. (See *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on inapposite grounds as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 160.)

III. Summary Adjudication – Issue No. 2

Issue No. 2 seeks summary adjudication of plaintiffs' punitive damages allegations.

The separate statement contains no separately stated punitive-damages facts. Instead, Defendants merely incorporate by reference the facts supporting Issue No. 1. The separate statement contains no separately stated facts concerning malice, oppression, fraud, despicable conduct, conscious disregard, ratification, managerial authorization, or any other issue specifically pertinent to punitive damages.

Because the separate statement fails to identify separately stated material facts supporting adjudication of the punitive damages issue, summary adjudication of Issue No. 2 is also DENIED. (See *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on inapposite grounds as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 160.)

IV. Reply Arguments Do Not Cure the Defects

On reply, Defendants argue that Plaintiffs' negligent entrustment claim fails because Pacific Agri admits that Borrayes acted within the course and scope of his employment and therefore the negligent entrustment claim is barred under *Diaz v. Carcamo* (2011) 51 Cal.4th 1148.

Whether or not that argument is ultimately persuasive, the separate statement does not identify as a separately stated undisputed material fact that Pacific Agri admits course-and-scope employment or vicarious liability. Rather, Defendants attempt to rely on declaration sections cited for the first time on reply.

Further, Defendants did not separately identify negligent entrustment as its own issue for summary adjudication. Defendants instead included it within Issue No. 1.

The Court therefore concludes that the reply arguments do not cure the deficiencies in the motion or separate statement.